UNIT 1

INTRODUCTION TO INTELLECTUAL PROPERTY

INTRODUCTION

Intellectual property encompasses intangible assets owned by individuals or companies that are legally safeguarded against unauthorized use. These assets, unlike physical or tangible property, arise from human intellect and innovation, such as artwork, inventions, symbols, and brand names.

Just like physical property, intellectual property is protected by laws in most developed economies to preserve its value and grant exclusive rights to its creators or owners.

Intellectual property is a category of intangible assets. They can't be held and don't necessarily have a physical presence. These assets are created using human intellect. Such property can take many forms and can include artwork, symbols, logos, brand names, and designs.

Companies are diligent when it comes to identifying and protecting intellectual property because it holds such high value in an increasingly knowledge-based economy. Producing intellectual property requires heavy investments in brainpower and time of skilled labour. This translates into heavy investments by organizations and individuals that shouldn't be accessed by others with no rights.

Extracting value from intellectual property and preventing others from deriving value from it is an important responsibility of any company. Though intangible, intellectual property can be more valuable than physical assets. It can represent a competitive advantage and is fiercely guarded and protected by the companies that own the property as a result.

Intellectual Property Rights or IPR refers to the legal rights that creators or owners have over their intellectual properties.

Intellectual Property, sometimes known as IP, refers to the creations of the human mind, exclusive to a single person. Intellectual Property includes inventions, literature and artistic masterpieces, designs, emblems, titles, and pictures utilized in commerce and business. Such creations are prone to plagiarism or copying, Intellectual Property Rights protect them from unauthorized production, distribution, and display.

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Why is Intellectual Property Rights (IPR) Important?

Intellectual Property Rights are important because of the following reasons:

1. Boost Business Growth: There are chances of business ideas/strategies being stolen byrival businesses in order to capture the firm's market share and decelerate business growth. Therefore, small and medium enterprises need to protect their exclusive goods and services because losing out on market share and potential customers can be very harmful to such firms in the beginning stages. Thus, IPRs help such firms by preserving their ideas.

2. Easing the Marketing Process: Intellectual Property is an essential tool for creating an identity for a business. It helps a firm in distinguishing its own products and services in the market from those of others and prevent plagiarism; thus, encouraging easier reach to the target customers, thereby making the whole marketing process very seamless.

3. Safeguarding Unique Ideas: Many a time people try to copy the creation of others for their own commercial profit. It becomes essential to protect such ideas and creations from rival parties to ensure exclusivity and uniqueness in one's own creation.

4. Raising Funds: Any Intellectual Property Right owner is free to monetise and commercialise his Intellectual Property assets through sale, licensing and use as a guarantee for debt financing. Intellectual Property Rights can also be used to raise funds through public borrowings, loans, and government subsidies.

5. Enhancing Export Opportunities: A business with registered IPRs can use its brands and designs to market its goods and services in other markets too. It means that a business with registered IPRs can tap into franchising agreements with foreign companies or export their patented products.

Intellectual Property Rights (IPR) are crucial for protecting creators' innovations, fostering economic growth, and encouraging creativity across various industries.

Protection of Creations

Intellectual Property Rights provide legal protection for the creations of the human intellect, including inventions, artistic works, designs, and brand identities. This protection ensures that creators have exclusive rights to their work, preventing unauthorized use or reproduction by others. By safeguarding these creations, IPR encourages individuals and businesses to invest time and resources into innovation without the fear of their ideas being stolen or misused.

Fostering Innovation and Economic Growth

IPRs play a vital role in driving economic development by incentivizing innovation. When inventors and artists know their efforts will be rewarded, they are more likely to invest in developing new technologies, products, and artistic expressions. This not only leads to the creation of new jobs but also stimulates competition and enhances the overall economy.

Encouraging Creativity

By providing exclusive rights to creators, IPRs foster an environment where creativity can thrive. For example, copyright protects original literary and artistic works, allowing authors and artists to benefit financially from their creations. This encourages more individuals to engage in creative activities, knowing they will receive recognition and compensation for their work.

Attracting Investment

Strong intellectual property protection is essential for attracting foreign direct investment. Companies are more likely to invest in countries with robust IPR regimes, as they can be assured that their intellectual assets will be secure. This influx of investment can lead to further innovation and economic growth.

Supporting Fair Competition

IPRs help maintain fair competition in the market by preventing unfair practices such as plagiarism and unauthorized copying. This not only protects the interests of creators but also ensures that consumers have access to high-quality and original products.

Conclusion

In summary, Intellectual Property Rights are fundamental to protecting the interests of creators, fostering innovation, and driving economic growth. They create a conducive environment for creativity and investment, ultimately benefiting society as a whole. Understanding the importance of IPR is essential for appreciating its role in shaping a vibrant and competitive economy.

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Types of Intellectual Properties

The different types of Intellectual Property Rights include:

1. Copyright:

Copyright refers to the right to "not copy". It is a right pertaining to Intellectual Property such as literature, art, music, sound recording, and cinematography. Copyright prohibits the unauthorised use of the content, including acts such as the reproduction and distribution of copies of the subject matter. Copyright enables the protection of work automatically as soon as the work comes into existence. The registration of the copyright, though not mandatory, is essential to exercise the right in case of an infringement.

2. Trademark:

A trademark is any word, name, and symbol, or a combination of words, names, and symbols that lets us identify the goods made by an individual, company, or organisation and also differentiates such goods from those of other parties. Examples of trademarks include the Apple logo, LG logo, Dell logo, Audi logo, etc. There are many kinds of trademarks available to a goods/service provider in India such as Product Marks, Service Marks, Collective Marks, Certification Marks, Shape Marks, Pattern Marks, and Sound Marks. The registration of a trademark, though not mandatory, is essential to establish exclusive rights over such marks.

3. Geographical Indication:

A geographical indication is used to identify and distinguish agricultural, natural, or manufactured products from one geographical location to another. Manufactured products further entail handicrafts, industrial goods, foodstuffs, etc. Such indications play a very important role in highlighting the various components of our heritage, and collective goodwill of a certain geographical region, that has been created over a period of time.

For example, many food items such as fruits and other things like wool, yarn, etc., come with labels on their packages that specify the state or region they have been cultivated in or

manufactured in so as to reap the benefits of their goodwill, like Darjeeling is famous for its tea, Nagpur is famous for its oranges, Kashmir for its Pashmina wool, etc.

4. Patent:

Patent is an official document giving it's owner sole right to make, use or sell the invention and preventing others from using it or copying it. Patents are conferred only upon inventions and not the discovery of a phenomenon. Invention here refers to coming up with a device or an idea with your own mind, whereas discovery means simply getting to know and find out something that already exists in the universe.

The distinction between discovery and invention can be understood with the following example: Isaac Newton discovered gravity when he saw an apple falling from a tree while Alexander Graham Bell invented the telephone. In this case, the telephone can be patented for being an innovation, but not the gravitational laws.

5. Design:

Nowadays customers face an enormous choice of products, including many that offer the same basic functionality. So, they will tend to choose the one with the design they find the most attractive within their price range. Industrial products and handmade goods are the primary entities that use design laws. These include cars, telephones, kitchen utensils, electrical appliances, etc. Such rights entitle the right holder to control the commercial production, import, and sale of products with the protected design.

6. Plant Variety:

Animal and plant breeders also enjoy special rights over the species/varieties of flora and fauna bred by them. Some parties argue that such varieties are a result of a natural phenomenon; however, they are usually the representatives of gene combinations and skillful natural selection. A number of laws govern the rights available to plant varieties and their breeders, the primary ones being- The Plant Variety Protection Act, 1970, and The Utility Patent Act, 1985.

7. Semiconductor Integrated Circuits Layout Design:

Semiconductors are an important part of a computer chip, designed to perform an electronic circuitry function. The term Semiconductor Layout Design refers to the design or layout of transistors and other elements involved in circuit work in computers. Special rights are conferred for the protection of semiconductor integrated circuits layout- designs so that rival companies do not copy the design and sell it as their own.

here are two main bodies – World Intellectual Property Organization (WIPO) under UN which administers 1-7 treaties mentioned below. the 8th treaty is independent of any organization. Another relevant body is the World Trading Organization. 9th (or TRIPS) is administered by the WTO. the 10th treaty comes under UNESCO.

TOPIC

ORGANIZATIONS & AGENCIES ON IPR

USPTO

United States Patent & Trademark Office

The United States Patent and Trademark Office (USPTO) is the federal agency under the Department of Commerce and is responsible for granting U.S. patents and registering trademarks.he USPTO is "unique among federal agencies because it operates solely on fees collected by its users, and not on taxpayer dollars". Its "operating structure is like a business in that it receives requests for services—applications for patents and trademark registrations—and charges fees projected to cover the cost of performing the services.

The office is headed by the secretary of commerce for intellectual property and director of the United States Patent and Trademark Office. The main functions of USPTO are

- Administering the laws relating to patents and trademarks;
- Advising the secretary of commerce, the president of the United States, and the administration on patent, trademark, and copyright protection; and
- Providing advice on the trade-related aspects of intellectual property.

The USPTO examines applications for trademark registration, which can be filed under five different filing bases: use in commerce, intent to use, foreign application, foreign registration, or international registration.[82] If approved, the trademarks are registered on either the Principal Register or the Supplemental Register, depending upon whether the mark meets the appropriate distinctiveness criteria. This federal system governs goods and services distributed via interstate commerce, and operate alongside state level trademark registration systems

WIPO

World Intellectual property Organization

The World Intellectual Property Organization (WIPO) is the United Nations agency that serves the world's innovators and creators, ensuring that their ideas travel safely to the market and improve lives everywhere.

We do so by providing services that enable creators, innovators and entrepreneurs to protect and promote their intellectual property (IP) across borders and acting as a forum for addressing cutting-edge IP issues. Our IP data and information guide decisionmakers the world over. And our impact-driven projects and technical assistance ensure IP benefits everyone, everywhere. The main functions of WIPO are

- Global forum where Member States craft balanced IP rules for a fast-changing world

- Seamless services that protect IP and help resolve disputes across borders

- Innovation ecosystems connected with smart digital tools that make knowledge more accessible

- Targeted support that helps all countries unlock IP's value for growth and development

- Trusted multilingual data and insights that power decisions, policy and progress

WIPO administers 26 international treaties that concern a wide variety of intellectual property issues, ranging from the protection of audiovisual works to establishing international patent classification. It is governed by the General Assembly and the Coordination Committee, which together set policy and serve as the main decision making bodies. The General Assembly also elects WIPO's chief administrator, the Director General, currently Daren Tang of Singapore, who took office on 1 October 2020. WIPO is administered by a Secretariat that helps carry out its day-to-day activities.

Headquartered in Geneva, Switzerland, WIPO has "external offices" around the world, including in Algiers (Algeria); Rio de Janeiro (Brazil); Beijing (China), Tokyo (Japan); Abuja (Nigeria); Moscow (Russia); and Singapore (Singapore).Unlike most UN organizations, WIPO does not rely heavily on assessed or voluntary contributions from member states; 95 percent of its budget comes from fees related to its global services.WIPO currently has 193 member states.

WTO

World Trade Organization

The World Trade Organization (WTO) is an international organization that deals with the global rules of trade between nations. Its primary goal is to ensure that trade flows as smoothly, predictably, and freely as possible to improve living standards, create jobs, and support economic development worldwide. The WTO provides a framework of trade agreements negotiated by its members, offers a forum for resolving trade disputes, and helps developing countries enhance their trading capacity.

What the WTO Does

Sets Global Trade Rules:

At its core, the WTO operates based on agreements negotiated and signed by its members, which establish the rules for international commerce.

Facilitates Trade:

It works to make trade flows more predictable, liberal, and efficient, which helps boost economic welfare and living standards.

Provides a Dispute Resolution Mechanism:

The WTO offers a structured process for countries to resolve trade problems they may have with each other.

Assists Developing Countries:

It supports developing nations in building their capacity to engage in international trade.

Supports Sustainable Development:

The organization's work aims to use trade as a tool for achieving broader development goals.

Key Characteristics

Founded in 1995: The WTO was established in Geneva, Switzerland, in 1995, succeeding the General Agreement on Tariffs and Trade (GATT).

Global Membership: The WTO brings together the vast majority of the world's trading nations.

Focus on Openness and Fairness: The aim is to create a global trading system that is fairer and more open, allowing all countries to benefit from trade.

EPO

European Patent Office

The European Patent Office (EPO) is one of the two organs of the European Patent Organization (EPOrg), the other being the Administrative Council. The EPO acts as executive body for the organization while the Administrative Council acts as its supervisory body as well as, to a limited extent, its legislative body. The actual legislative power to revise the European Patent Convention lies with the Contracting States themselves when meeting at a Conference of the Contracting States.

Within the European Patent Office, examiners are notably in charge of studying European patent applications, filed by applicants, to decide whether to grant a patent for an invention. The patents granted by the European Patent Office are called European patents.

The European Patent Office (EPO) grants European patents covering the Contracting States to the European Patent Convention and several other states that have concluded extension and validation agreements with the EPO. The EPO provides a single patent grant procedure, but not a single patent from the point of view of enforcement. Hence a patent granted by the EPO is not a single or unitary European Union patent or uniformly recognized Europe-wide patent, but a bundle of national patents.[6] Patents granted by the EPO can, however, be challenged centrally at the EPO via opposition proceedings. Besides granting European patents, the EPO is also in charge of establishing patentability search reports for national patent applications on behalf of the patent offices of France, Netherlands, Belgium, Luxembourg, Italy, Turkey, Greece, Cyprus, Malta, San Marino, Lithuania, Latvia and Monaco.he EPO headquarters are located in Munich, Germany.

INTA

International Trademark Association

The International Trademark Association (INTA) is a not-for-profit membership association dedicated to the support and advancement of trademarks and related intellectual property as elements of fair and effective commerce.The International Trademark Association is concerned with protecting trademarks and complementary intellectual property via advocacy work and offering educational programs and legal resources.

The association's nearly 6,500 member organizations from 165 countries represent more than 34,000 trademark professionals and include brand owners from major corporations as well as small and medium-sized enterprises, law firms, and nonprofits.

NTA provides services to its members and the public in three main areas: global trademark resources, programs & events, and policy & advocacy.

INTA produces digital publications, including the INTA Bulletin and The Trademark Reporter, and multijurisdictional Practice Guides, such as Country Guides, covering various topics and jurisdictions worldwide. Some resources (focusing on the basics of trademark law) are available to the general public; others (on legal practice in jurisdictions worldwide) are exclusively available to members.INTA hosts meetings, conferences, roundtables, and webcasts that bring international trademark professionals together to discuss trademark issues, and IP law and practice. These events are open to members and non-members.NTA works to promote effective trademark laws and policies worldwide. INTA carries out its policy and advocacy work through model laws and guidelines, board of director's resolutions, amicus briefs, testimony and submissions, and reports.

TOPICS

TREATIES ON IPR

Berne Convention for Literary & Artistic Works

The Berne Convention is an international agreement from 1886 that establishes minimum copyright protection standards for literary and artistic works across signatory countries. It operates on the principles of national treatment, meaning foreign works get the same protection as domestic works, and automatic protection, meaning copyright exists without formal registration or other formalities. The convention has been revised multiple times to address technological advancements, and it gives authors control over how their works are used and sets standards for copyright duration.

Key Aspects of the Berne Convention

National Treatment:

If a work created in one member country is protected in that country, it must also be protected in all other member countries as if the work were created there.

Automatic Protection:

Copyright protection is granted automatically the moment a work is created in a tangible form, without the need for registration or other formalities.

Minimum Standards:

The convention outlines the minimum rights that member countries must provide to creators, including rights to translate, reproduce, and publicly perform their works.

Copyright Duration:

It sets a minimum duration for copyright protection, generally the author's life plus 50 years, though countries can provide for longer terms.

Author's Rights:

The convention provides for the "moral rights" of authors, such as the right to be identified as the author and the right to object to the distortion or mutilation of their work.

Scope:

It covers a wide range of works, including books, music, films, paintings, and other creative expressions.

Revisions:

The convention has been revised periodically to adapt to new technologies and changes in creative mediums, such as radio, television, and cinematography.

How it Works

When a country joins the Berne Convention, it agrees to uphold these principles and provide the minimum standards of protection outlined in the treaty. This means that an author in a member country can, for example, prevent unauthorized reproduction of their book in another member country.

Paris Convention for Industrial Property

The Paris Convention for the Protection of Industrial Property is an international treaty, signed in 1883, that established core principles for protecting industrial property like patents, trademarks, and industrial designs across multiple countries. Key principles include national treatment, which grants citizens of other member countries the same protection as domestic citizens, and the right of priority, allowing applicants to claim their initial filing date in their home country as the priority date for filings in other member countries within a set period (e.g., 12 months for patents). The treaty aims to facilitate international protection and promote fair competition in industry and commerce, and is administered by the World Intellectual Property Organization (WIPO)

Key Aspects of the Paris Convention:

Subject Matter:

It covers various forms of industrial property, including:

Patents

Trademarks and service marks

Industrial designs

Utility models

Trade names

Geographical indications

The repression of unfair competition

Main Principles:

National Treatment: Contracting states must grant the same protection to citizens of other member countries as they do to their own nationals.

Right of Priority: An applicant who has filed for protection of an invention or mark in one member country can file for protection in other member countries within a certain period (usually 12 months for patents and 6 months for industrial designs and marks). This allows them to have a uniform filing date across different countries.

Common Rules: These are principles that apply to various aspects of industrial property protection.

Administration and Evolution:

The convention is administered by the World Intellectual Property Organization (WIPO).

The original 1883 treaty has been revised and amended several times, with significant revisions occurring in Brussels (1900), Washington (1911), The Hague (1925), London (1934), Lisbon (1958), and Stockholm (1967)

TRIPS

Trade Related Aspects of Intellectual property System

This is an international agreement administered by the WTO that sets minimum standards for intellectual property protection (like patents, copyrights, and trademarks) among member countries.

It aims to balance the rights of creators with public interests, ensuring intellectual property rules are part of the global trading system.The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) is an international legal agreement between all the member nations of the World Trade Organization (WTO). It establishes minimum standards for the regulation by national governments of different forms of intellectual property (IP) as applied to nationals of other WTO member nations. TRIPS were negotiated at the end of the Uruguay Round of the General Agreement on Tariffs and Trade (GATT) between 1989 and 1990and is administered by the WTO.The TRIPS agreement introduced intellectual property

law into the multilateral trading system for the first time and remains the most comprehensive multilateral agreement on intellectual property to date. In 2001, developing countries, concerned that developed countries were insisting on an overly narrow reading of TRIPS, initiated a round of talks that resulted in the Doha Declaration. The Doha declaration is a WTO statement that clarifies the scope of TRIPS, stating for example that TRIPS can and should be interpreted in light of the goal "to promote access to medicines for all”

Specifically, TRIPS requires WTO members to provide copyright rights, covering authors and other copyright holders, as well as holders of related rights, namely performers, sound recording producers and broadcasting organizations; geographical indications; industrial designs; integrated circuit layout-designs; patents; new plant varieties; trademarks; trade names and undisclosed or confidential information, including trade secrets and test data. TRIPS also specify enforcement procedures, remedies, and dispute resolution procedures. Protection and enforcement of all intellectual property rights shall meet the objectives to contribute to the promotion of technological innovation and to the transfer and dissemination of technology, to the mutual advantage of producers and users of technological knowledge and in a manner conducive to social and economic welfare, and to a balance of rights and obligations.

Madrid Agreement & Protocol

The Madrid System for the International Registration of Marks is governed by the Madrid Agreement (1891) and its more flexible, widely adopted successor, the Madrid Protocol (1989). Both allow brand owners to file a single international application to protect their trademarks in multiple countries, but the Protocol offers more flexibility regarding languages, fees, and refusal time limits, making it the foundation of the modern system used exclusively since 2016.

The Madrid System

Purpose: To provide a user-friendly, cost-effective way to obtain and manage trademark protection in multiple countries by filing one international application.

Administered by: The World Intellectual Property Organization (WIPO).

Process: An applicant files a single international application with their own national (or regional) trademark office. This office then forwards the application to WIPO, which transmits it to the offices of the designated Contracting Parties.

The Madrid Agreement (1891)s

Established: The original international trademark registration system.

Limitations: Had stricter rules regarding fees (fixed for all countries), languages (fixed, often limited), and refusal time limits for national offices.

Compatibility: Its rigid structure limited its adoption by some countries that had not been able to join.

The Madrid Protocol (1989)

Purpose:

To make the system more flexible and compatible with the domestic legislation of various countries.

Key Features:

Languages: Introduced English and later Spanish as options for application languages.

Fees: Allows for "individual fees" based on the national fees of the designated countries, rather than a single fixed fee.

Time Limits: Extended the time limit for national offices to refuse protection to 18 months, with possible extensions for oppositions.

Flexibility: Made the system more adaptable to different legal frameworks and needs.

Modern Madrid System

Since 2016, the Madrid System functions exclusively under the Protocol.

The Protocol's flexibility has led to widespread adoption, with new countries joining annually and significantly expanding the system's global coverage.

WIPO Copyright Treaty

The WIPO Copyright Treaty (WCT) is an international agreement, specifically a "special agreement" under the Berne Convention, designed to protect literary and artistic works in the digital environment. It updates copyright protection to address the challenges of the digital age, focusing on digital environments and establishing rules for intellectual property rights in this new context.

Key Aspects of the WCT

Digital Protection:

The WCT's primary purpose is to provide copyright protection for works in the digital environment, which the original Berne Convention did not fully address.

Berne Convention Connection:

It functions as a "special agreement" under the Berne Convention, which is a major international treaty on copyright protection.

Author's Rights:

The treaty clarifies and strengthens the rights of authors and creators in the context of the digital environment.

International Standards:

It helps to set international standards for copyright in the digital realm, ensuring a consistent framework across member countries.

Why It Was Created

Technological Advancements:

The rise of the internet and digital technologies necessitated an update to international copyright laws to protect creators' works from unauthorized use and to adapt to new ways of distributing and accesssing content.

Legal Framework:

The WCT provides a necessary legal framework for countries to implement in their national laws to address issues like online copying, distribution, and access to copyrighted works. O Copyright Treaty